

provision of discovery shall not be deemed an admission that the motion was proper or that sanctions should be awarded.)

On balance, this court finds Plaintiff's objections were meritless and therefore Defendant's Motion to Compel Further Responses to Requests for Admissions, set one is GRANTED and Plaintiff is ORDERED to provide, objection-free, code compliant responses by January 9, 2026.

Defendant's requests for monetary and/or terminating sanctions is DENIED at this time.

The court must order sanctions unless substantial justification or other circumstances make imposing sanctions unjust. (C.C.P. section 2025.450(g)(1), *Van v. LanguageLine Solutions* (2017) 8 Cal.App.5th 73, 82.) At this time, the court finds sanctions are not appropriate. The court finds that while Plaintiff was represented by counsel at the time of her response to Defendant's discovery request, the court finds that Plaintiff's counsel failed to properly respond to the requests. On November 21, 2025, counsel was relieved from representing Plaintiff Martinez. The court finds, currently, it unjust to order Plaintiff herself to be responsible for sanctions under the circumstances.

At this time, the court does not find that terminating sanctions would be appropriate. (See in contrast, *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690 [Court's terminating sanction against plaintiff found appropriate where court had already issued less severe monetary sanctions and two orders to compel plaintiff to produce the witness for deposition for which plaintiff failed to comply].)

The court will observe that this is the second Motion to Compel that the court has granted against Plaintiff. The previous Motion to Compel was granted on October 9, 2025, with an order for sanctions if Plaintiff did not comply with the court's order for Plaintiff to communicate with Defendant's counsel to schedule a deposition. According to Defendant's most recent brief filed November 25, 2025, it appears that Plaintiff did not comply with the court's order.

Thus, the Plaintiff is on notice that any further failures to comply with the court's orders compelling Plaintiff to provide further responses to discovery could possibly result in monetary, evidentiary or terminating sanctions against Plaintiff. (See *Creed-21 v. City of Wildomar* (2017) 18 Cal. App. 5th 690.)

2. 9:00 AM CASE NUMBER: C24-03117

CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PROD OF DOCS, SET 1
FILED BY: GIOVINCO, JOSEPH ANTHONY**

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

On or about February 24, 2025, Plaintiffs propounded Request for Production of Documents, Set One, on Defendant, which included 31 requests related to Plaintiff's action under the Song-Beverly Act for alleged nonconformities or defects in their 2023 Ford Escape. Under the Song-Beverly Act, the cause of action at issue here, "[a] plaintiff pursuing an action under the Act has the burden to prove that (1) the vehicle had a nonconformity covered by the express warranty that substantially impaired the use,

value or safety of the vehicle (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer of the vehicle for repair (the presentation element); and (3) the manufacturer or his representative did not repair the nonconformity after a reasonable number of repair attempts (the failure to repair element). (Civ. Code, §1793.2; *Ibrahim v. Ford Motor Co.* (1989) 214 Cal.App.3d 878, 886-887, 263 Cal.Rptr. 64.)" (*Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094, 1101.)

Based on the court's review of all Plaintiff's requests, all Requests for Production appear relevant to Plaintiff's case. Here, Plaintiff's Requests Nos. 1-14 and 31 relate specifically to documentation related to the Subject Vehicle, contacts with Plaintiffs or defenses specifically asserted by Defendants. Request Nos. 15-29 relate to policies and procedures for how Ford handles Song-Beverly cases relating to their call centers, repurchasing, and repairs. Request No. 30 relates to other customer complaints electronically stored that are substantially similar to complaints made by Plaintiff with respect to the Subject Vehicle.

On April 4, 2025, Defendant provided responses. Defendant referenced documents in part and objected in part to 22 of the 31 requests, provided objections only to 8 requests and conducted a diligent search that resulted in an inability to comply with one request.

The court finds that Plaintiff provided a separate statement compliant with the code.

Pursuant to California Code of Civil Procedure section 2031.240, subdivision (b), "[i]f the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

The court does not necessarily agree that all of Defendant's initial objections were with merit; for example, Defendant objected to Request No. 30 being overly broad, unduly burdensome and seeking irrelevant documents because it is not limited to the subject vehicle or the allegation in Plaintiffs' Complaint, to any type of customer complaint, or to a reasonable or relevant timeframe. The court disagrees. The court finds this request for production to require documents related to complaints by owners with substantially similar non-conformities or defects as alleged in the subject vehicle indicates the same complaints that are at issue here. Plaintiff defined "substantially similar" to mean similar customer complaint that would be the same nature of the reported system, malfunction, trouble code, Technical Service Bulletin Recommendation, dashboard indicator light, or other manifestation of a repair problem, as description listed in any warranty summary or repair order for the Subject Vehicle. The request is specific to the complaints at issue with the Subject Vehicle and are therefore relevant. The court finds Defendant's objection to the request as being vague, ambiguous, overly broad and therefore not relevant would have been overruled. A Song-Beverly Action focuses on whether

plaintiff's vehicle had defects that substantially impaired its use, value or safety. Plaintiffs are entitled to discovery that is probative of defendant's knowledge of defects in 2023 Ford Escape vehicles, "including in vehicles other than the subject vehicle, and defendant's handling of complaints." (*Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 143-44, 154-55, (superseded by revisions to the Federal Rules of Civil Procedure. See Fed. R. Civ. P. 26(b)) [evidence pertaining to defects in same model transmission in vehicles other than subject vehicle is relevant to Song-Beverly claim]; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-74, 993 [evidence pertaining to similar problem in other vehicles other than subject vehicle are highly relevant].)

Nonetheless, on November 17, 2025, Defendant provided supplemental documents and responses to Plaintiff's Requests for Production. Upon review of Defendant's supplemental responses, the court finds the responses sufficient, and Defendant has provided code compliant responses. That said, there are still objections raising attorney-client privilege or the attorney work product protections, yet it appears that Defendant has failed to provide support for their assertions as required by the code (See California Code of Civil Procedure section 2031.240, subdivision (c)(1).)

Accordingly, Plaintiff's Motion to Compel Further Responses to Request for Production of Documents, Set One is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents is otherwise denied.

**3. 9:00 AM CASE NUMBER: C24-03117
CASE NAME: JOSEPH GIOVINCO VS. FORD MOTOR COMPANY, A DELAWARE CORPORATION
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS
FILED BY: GIOVINCO, JOSEPH ANTHONY
*TENTATIVE RULING:***

Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is GRANTED in part and DENIED in part. The Motion is granted only to the extent that Defendant is ORDERED to provide Plaintiff with privilege logs for any requests with asserted privileges or work product protections by January 9, 2026. Plaintiff's Motion to Compel Further Responses to Form Interrogatories 12.1, 15.1, and 17.1 is otherwise denied.

On February 24, 2025, Plaintiff propounded on Defendant twenty-one form interrogatories related to their action brought pursuant to the Song-Beverly Act. Plaintiff seeks to compel further responses to Request Nos. 12.1, 15.1, and 17.1. Plaintiff asserts that Defendants have failed to provide appropriate responses to Form Interrogatories 12.1, 15.1, and 17.1, as required under the Code. The court finds that Plaintiff provided a separate statement compliant with the code.

Form Interrogatory No. 12.1 seeks witnesses to the Subject Vehicle's defects; Form Interrogatory No. 15.1 seeks information and facts supporting Defendant's affirmative defenses; and Form Interrogatory No. 17.1 seeks information regarding Defendant's responses to Plaintiff's requests for admissions.

A Song-Beverly Action focuses on whether plaintiff's vehicle had defects that substantially impaired its use, value or safety, and as such, the court finds all of Plaintiff's requests relevant.